

		enforceable as applied. Those issues remain subject to Hana’s response and adjudication on the merits. The proposed cross-complaint reserves a possible separate unlawful detainer proceeding; this order does not grant possession or adjudicate any such proceeding. Tenet shall file and serve the proposed cross-complaint attached as Exhibit A to the Tran declaration, including its referenced exhibits, within 10 days after service of notice of this ruling. The parties shall promptly meet and confer concerning any discovery specifically required by the cross-complaint. This ruling does not itself reopen discovery or modify the trial date. Any necessary request for relief from existing discovery deadlines shall be presented under Code of Civil Procedure section 2024.050. Defendants shall give notice.
9.	2025-1495388 Sirott vs. Giammichele Law, APC	Case Management Conference Defendants Tustin Law Group, APC, formerly known as Giammichele Law, APC, and Steven Andrew Giammichele (collectively, “Defendants”) demur to the legal malpractice claims alleged in the First Amended Complaint (“FAC”) by Plaintiff Adrienne Sirott (“Plaintiff”), individually and as personal representative of the Estate of Stanley A. Sirott. The demurrer is overruled. <u>Judicial notice and standard of review</u> Defendants’ request for judicial notice is granted as to the issuance of letters testamentary to Plaintiff on April 14, 2025. The remaining requests concerning related proceedings are denied as unnecessary to resolution of the demurrer. The existence of those proceedings does not establish the truth of disputed factual assertions made in them. (Evid. Code, § 452, subd. (d); <i>Richtek USA, Inc. v. uPI Semiconductor Corp.</i> (2015) 242 Cal.App.4th 651, 659–660.) A demurrer tests the sufficiency of the pleading. The Court accepts properly pleaded material facts and reasonable inferences from those facts, but not conclusions of law. The FAC must be read reasonably and as a whole. (<i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318.) <u>Plaintiff’s individual claim</u> An estate-planning attorney’s duty to a nonclient beneficiary is limited. The client’s intent to benefit that person in the manner asserted must be clear, certain, and undisputed. Merely alleging

that the plaintiff was a beneficiary does not establish a duty to obtain every additional benefit the plaintiff claims should have been provided. (*Grossman v. Wakeman* (2024) 104 Cal.App.5th 1012, 1022–1024; *Gordon v. Ervin Cohen & Jessup LLP* (2023) 88 Cal.App.5th 543, 556–560.)

The FAC alleges more than a general intention to benefit Plaintiff. It alleges that Defendants prepared a Second Amendment allocating 75 percent of the Trust residue to Plaintiff and 25 percent to Patrick Roldan at Stanley’s direction, and that Stanley signed the amendment. It further alleges that Defendants attempted to implement that direction through a power of attorney that did not authorize the affected changes, despite knowing of that limitation. (FAC, ¶¶ 17–19.)

These allegations identify both the intended beneficiary and the particular intended benefit. The alleged error concerns the legal means used to implement an expressed disposition. An attorney’s duty to an intended beneficiary may encompass competent advice and preparation necessary to avoid a legal impediment to the specified gift. (*Osornio v. Weingarten* (2004) 124 Cal.App.4th 304, 334–335.) The allegation that the amendment accurately stated the intended percentages does not, by itself, defeat a claim that Defendants negligently prepared an instrument incapable of accomplishing that disposition.

Defendants correctly observe that Stanley’s intent cannot supply authority he lacked over Dolores’s property. Nor could Defendants owe Plaintiff a duty to override Dolores’s wishes or obtain a disposition their clients had not authorized. But those limitations do not establish that the FAC alleges no actionable duty. The FAC does not allege that Stanley knowingly directed Defendants to use an ineffective power of attorney. It alleges that Defendants undertook to implement his expressed instructions and negligently selected or employed the means of doing so. The existence of a probate dispute does not itself establish that those instructions were uncertain.

Plaintiff also alleges negligent tax planning. The FAC identifies provisions affecting the estate-tax marital deduction and the charitable deduction for the Tiffany collection, alleges Stanley’s intended tax treatment, and alleges resulting injury to Plaintiff as a residuary beneficiary. (FAC, ¶¶ 14–17, 22.) Contrary to Defendants’ characterization, the opposition expressly advances these allegations as a basis for Plaintiff’s individual claim.

In *Bucquet v. Livingston* (1976) 57 Cal.App.3d 914, 923–925, the court recognized a beneficiary’s malpractice claim based on drafting errors that frustrated an intended tax-saving arrangement and

	reduced the property passing to the beneficiaries. The FAC alleges that type of injury. Defendants’ arguments concerning the attempted increase from 50 percent to 75 percent do not dispose of the tax allegations. The causation challenge also does not warrant sustaining the demurrer. Plaintiff must establish that, but for Defendants’ negligence, she would have obtained a more favorable result. Foreseeability alone is insufficient. (<i>Viner v. Sweet</i> (2003) 30 Cal.4th 1232, 1241–1244.) The FAC alleges specific drafting and advice failures, resulting impairment of the intended gifts, and litigation expenses incurred because of those failures. (FAC, ¶¶ 18–23, 28.) Expenses incurred to address the consequences of an attorney’s negligence may constitute compensable injury. (<i>Budd v. Nixen</i> (1971) 6 Cal.3d 195, 202.) The Court does not determine on this demurrer that Plaintiff was irrevocably entitled to 75 percent of all Trust assets. Dolores’s continuing rights and any valid subsequent amendment may affect causation and the extent of recoverable damages. Plaintiff’s opposition also describes a particular alternative allocation that is not expressly set out in the FAC; the Court does not adopt that explanation as an established fact. Nevertheless, the FAC sufficiently alleges that identified errors caused actual litigation expenses and impaired the intended disposition and tax treatment. Defendants’ assertions concerning later acts by Roldan do not conclusively defeat those allegations. The demurrer to Plaintiff’s individual claim is overruled. <u>Plaintiff’s claim as personal representative</u> <i>Limitations and representative capacity</i> Code of Civil Procedure section 340.6 generally provides a one-year period following actual or constructive discovery of the facts constituting the alleged malpractice, or four years following the wrongful act or omission, whichever occurs first, subject to the statutory tolling provisions. A limitations defense supports a demurrer only when the bar clearly and affirmatively appears from the pleading or judicially noticeable matters. (<i>Marshall v. Gibson, Dunn & Crutcher</i> (1995) 37 Cal.App.4th 1397, 1403.) Defendants contend that the one-year limitations period began no later than Stanley’s death on August 2, 2023, and expired before Plaintiff obtained letters testamentary on April 14, 2025. Even assuming Defendants’ proposed commencement date, the original complaint was filed within that period, on June 13, 2024. Their argument therefore turns on whether Plaintiff’s subsequent
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appointment and amended pleading cured her original lack of representative authority with relation-back effect. The Court need not determine the precise accrual or discovery date to reject the categorical contention that the timing of the appointment necessarily bars the claim. (Prob. Code, § 8400, subd. (a).)

A defect in the original plaintiff's authority does not invariably prevent an amended pleading from relating back. An amendment substituting the proper representative may relate back when it preserves the underlying claim rather than introducing a different factual basis for liability. (*Klopstock v. Superior Court* (1941) 17 Cal.2d 13, 19–22.)

Defendants rely on *Coats v. K-Mart Corp.* (1989) 215 Cal.App.3d 961, 967–968. However, *Cloud v. Northrop Grumman Corp.* (1998) 67 Cal.App.4th 995, 1008–1011, distinguished *Coats*, including its repeated misrepresentations concerning representative status, prolonged failure to obtain appointment despite court orders, and absence of a motion to amend to substitute the duly appointed representative. *Cloud* rejected a categorical reading of *Coats* inconsistent with *Klopstock*'s liberal amendment rule. The relevant inquiry concerns relation back of an amended pleading, not automatic retroactive effect of an appointment.

Here, the FAC alleges Plaintiff's appointment as executor. Defendants themselves describe the original complaint as asserting a claim on behalf of the estate, and they identify no change in the underlying estate claim that would introduce a different factual basis for liability. Nor do they identify circumstances comparable to the prolonged misrepresentations and procedural history discussed in *Cloud*. Plaintiff's lack of authority when the original complaint was filed does not, without more, establish that the defect could not be cured through the amended pleading.

Defendants also rely on *Wheeler v. City of Santa Clara* (9th Cir. 2018) 894 F.3d 1046 and *MacEachern v. City of Manhattan Beach* (C.D.Cal. 2009) 623 F.Supp.2d 1092, 1101–1102. *Wheeler* rejected a proposed substitution after the limitations period where no personal representative had been appointed when the action was dismissed. Here, Plaintiff has obtained appointment and filed an amended complaint alleging that status. To the extent those federal decisions suggest that an original lack of representative authority invariably precludes relation back, the Court follows the California rule articulated in *Klopstock* and explained in *Cloud*. Defendants have not established a limitations bar on the grounds advanced.

This conclusion does not depend on treating the absence of an appointed representative as a ground for tolling. Nor does the

pendency of related litigation itself toll section 340.6. The demurrer on limitations grounds is overruled.

Injury to the estate

Plaintiff's appointment permits her to pursue claims belonging to the estate; it does not permit her to recover, in that capacity, losses belonging solely to herself or to other beneficiaries. A failed bequest ordinarily injures the intended beneficiary rather than the estate. (*Bucquet v. Livingston*, supra, 57 Cal.App.3d at p. 925.)

Defendants also correctly identify the statutory limitation on damages recovered on a decedent's surviving cause of action: those damages generally are limited to loss or damage sustained or incurred before death. (Code Civ. Proc., § 377.34, subd. (a); *People v. Runyan* (2012) 54 Cal.4th 849, 861–862.) Plaintiff cannot avoid that limitation merely by labeling a beneficiary's postdeath loss an estate loss.

The limitation on damages in a surviving cause of action does not resolve every malpractice claim arising upon a client's death. In *Granquist v. Sandberg* (1990) 219 Cal.App.3d 181, 185–187, the attorney allegedly failed to obtain trial preference before the client died, thereby causing the loss of recoverable damages in the underlying action. The court distinguished that underlying action from the malpractice claim, which first arose upon death, and permitted the personal representative to pursue the latter. In explaining that distinction, the court expressly analogized the claim to an action arising upon death from a failure to prepare a will. (Id. at p. 185.)

The Court applies that reasoning here by analogy; *Granquist* did not decide an estate-planning claim or establish that all losses resulting from defective estate planning belong to the estate. Likewise, *Runyan's* discussion of civil survival principles remains relevant: Plaintiff cannot recover postdeath losses on the theory that Stanley personally continued to sustain damage after death. The claim alleged here, however, is that negligent estate planning caused an injury to the estate itself when the plan took effect. *Runyan* did not decide whether a personal representative could maintain such a malpractice claim.

Paragraph 21 expressly alleges that the Estate of Stanley A. Sirott sustained litigation expenses and tax liability as a result of Defendants' negligent services. Paragraph 28 also alleges losses suffered by Plaintiff in her representative capacity. Read together with the particular drafting and advice failures alleged in paragraphs 14 through 19, these allegations assert injury to the estate itself. For purposes of this demurrer, the Court accepts the

		pleaded estate expenses and liability; it does not infer estate injury merely from an impaired gift or from the use of the term “estate tax.” The ultimate allocation of particular taxes and expenses among the estate, the Trust, and individual beneficiaries remains to be established. Plaintiff must prove an injury belonging to the estate to recover in her representative capacity, and the same loss may not be recovered twice. The FAC’s allegations of estate injury are sufficient to withstand the grounds advanced in this demurrer. The demurrer to Plaintiff’s claim as personal representative is overruled. Defendants shall file and serve an answer within 10 days after service of notice of this ruling. Plaintiff shall give notice.
10.	2025-1498552 Villa vs. Coastal Capital Group LLC	Case Management Conference Defendant Brian Ballo’s Motion to Quash Service of Summons and First Amended Complaint is granted. Defendant Alexander Ballo’s Motion to Quash Service of Summons and First Amended Complaint is granted. Defendant Sapphire Escrow’s Motion to Quash Service of Summons and First Amended Complaint is granted. <u>Legal Standard</u> “A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion for one or more of the following purposes: (1) To quash service of the summons on the ground of lack of jurisdiction of the court over him or her.” (Code Civ. Proc. § 418.10, subd. (a)(1).) “[N]o act by a party who makes a motion under this section, including filing an answer, demurrer, or motion to strike constitutes an appearance, unless the court denies the motion made under this section.” (Code Civ. Proc., § 418.10, subd. (e)(1); <i>Roy v. Superior Court</i> (2005) 127 Cal.App.4th 337, 345 [“Nothing could be clearer: a defendant may move to quash coupled with any other action without being deemed to have submitted to the court’s jurisdiction”] [emphasis in original].) When service of process is challenged by a motion to quash, plaintiff bears the burden of proving the facts necessary to establish valid